

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOSEPH TORRES, JR.,

Plaintiff,

- against -

THE CITY OF NEW YORK; FLORIAN GEGA (Shield No. 10702) of the 44th Precinct; OFFICER "JOHN DOE" of the 44th Precinct, Individually and in their official capacity, (the name John Doe being fictitious, as the true name and number are presently unknown),

Defendants.

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Index No.:

SUMMONS

Plaintiff designates Bronx County as the place of trial.

The basis of venue is:
The county in which the action arose per CPLR 504(3)

The cause of action arose in Bronx County and is against the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
December 14, 2021

Yours etc.

Christopher H. Fitzgerald

_____/s/_____
Christopher H. Fitzgerald

Attorney for Plaintiff

JOSEPH TORRES, JR.

233 Broadway, Suite 2348

New York, NY 10279

212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

FLORIAN GEGA (SHIELD NO. 10702)
44th Precinct, New York City Police Department
2 East 169th Street
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JOSEPH TORRES, JR.,

Plaintiff,

VERIFIED COMPLAINT

-against -

THE CITY OF NEW YORK; FLORIAN GEGA (Shield No. 10702) of the 44th Precinct; OFFICER "JOHN DOE" of the 44th Precinct, Individually and in their official capacity, (the name John Doe being fictitious, as the true name and number are presently unknown),

Defendants.

-----X

Plaintiff, by his attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on August 15, 2020 and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Defendants **GEGA** and **"JOHN DOE"**.
3. That all conditions and requirements precedent to the commencement of this action have been complied with.
4. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.
5. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for

all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

6. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

STATEMENT OF FACTS

7. On August 15, 2020 and continuing for several days thereafter, Plaintiff Joseph Torres, Jr.'s rights under the United States Constitution, the New York State Constitution, New York statutory and common law were violated by the defendants.
8. On September 7, 2020, and within the time prescribed by law, a Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
9. That a hearing was conducted pursuant to General Municipal Law §50(h) on August 18, 2021.

10. That this action is commenced from the incident giving rise to the claims in this lawsuit within the time prescribed by the statutory law of New York and by the governor's executive order
11. That on August 15, 2020, Plaintiff **JOSEPH TORRES, JR.** (hereinafter "Plaintiff") was lawfully on the sidewalk located at the corner of Morris Avenue and East 161st Street in Bronx County, City and State of New York, attending to his children.
12. On that date and at that place, an individual approached the Plaintiff and began attacking him outside of his car. Soon after this, about four to six officers, all in uniform and appearing to have body cameras, arrived.
13. Plaintiff put his hands up and, without warning or explanation, defendant "**JOHN DOE**" slammed the Plaintiff onto the ground after circling around him and lifting him into the air.
14. Several onlookers began filming and informed the arriving officers that the other individual, rather than the Plaintiff, was the one who had initiated the violence.
15. Defendant "**JOHN DOE**" then brought the Plaintiff to the 44th Precinct.
16. At the precinct, Officer Doe and another officer began to repeatedly push the Plaintiff's head on a desk.
17. They also raised up the Plaintiff's arms behind his back while he was handcuffed, causing further pain.
18. He was then questioned by a separate officer, defendant **FLORIAN GEGA** ("GEGA"), who was not in fact the arresting officer but who is listed on the complaint.
19. Plaintiff was searched at the precinct and the police took items including cash.

20. An officer at the scene got into the Plaintiff's car and drove the car to the 44th Precinct, where it was impounded. The Plaintiff was not given a voucher for these items at the time they were taken.
21. The Plaintiff then finally began receiving treatment for his injuries. While receiving initial treatment, one of the EMS personnel said that an officer had told them that the other individual, not the Plaintiff, had initiated the violence.
22. Plaintiff was taken to Bronx Lebanon Hospital around 8:00 PM, where he was diagnosed with a concussion. At some point while he was at the hospital, he was finally informed that he was being arrested for assault.
23. Plaintiff was then taken to central booking at approximately 12:30 AM on Sunday, August 16, 2020. The Plaintiff repeatedly alerted officers that the handcuffs were too tight and, because of this, had bruises on his arms in the location of the cuffs for days following the incident.
24. Once at central booking, the Plaintiff continued to wait in a cell for about 24 hours without receiving any further medical care. He was arraigned and released on Monday, August 17th, 2020 at approximately midnight.
25. In total, the Plaintiff was detained for over two days (approximately 54 hours).
26. As a direct result of defendant "**JOHN DOE**"'s unprovoked, violent attack that preceded his arrest, the Plaintiff suffered numerous scrapes and cut on his face and major contusions on his body, among other injuries.
27. Additionally, since the incident, the Plaintiff has had consistent, severe headaches and poor vision in addition to other injuries and lasting effects. He has not been able to determine the extent of the losses for the items that the officers took from him or any

damages to his car, including any expenses related to the officer driving his car without his permission.

28. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by Plaintiff were due solely to the negligence, carelessness, recklessness and willful misconduct of the **CITY OF NEW YORK**, its agents, servants and/or employees.

FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER New York Law and 42 U.S.C. §1983

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
30. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and **CITY OF NEW YORK**.
31. As a result of the aforesaid conduct by defendants **JOHN DOE** and **GEGA**, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
32. Plaintiff was aware of his confinement.
33. This arrest was not protected by legal privilege, nor were such acts legally justified.
34. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

35. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER FEDERAL LAW and
ASSAULT & BATTERY UNDER STAT LAW

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
37. On August 15, 2021 defendants used force against plaintiff.
38. The force used was unreasonable and excessive.
39. Plaintiff was harmed as a result of the use of this force.
40. Defendants' use of force was a substantial factor in causing the harm to plaintiff.
41. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.
42. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF:
NEGLIGENCE

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
44. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff in their negligent application of the use of force.
45. The acts and conduct of the defendants were the direct and proximate cause of injuries to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

46. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING of GEGA, and JOHN DOE

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
48. Defendant **CITY OF NEW YORK** negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
49. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FIFTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION under New York Law and 42 U.S.C. §1983

50. Plaintiff realleges and incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
51. Defendants initiated and continued a criminal action against the Plaintiff without probable cause.
52. Defendants commenced this criminal action out of malice.

53. The criminal action against Plaintiff terminated in Plaintiff's favor.
54. The arrest, confinement, and restraint of Plaintiff's liberty was not otherwise privileged.
55. Defendants disregarded exculpatory evidence in order to further their malicious prosecution of the Plaintiff.
56. As a direct, sole and proximate result of the defendants' actions, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and standing in his community.

SIXTH CLAIM FOR RELIEF
FABRICATION OF EVIDENCE UNDER 42 U.S.C. § 1983

57. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
58. By deliberately manufacturing false evidence against plaintiff, including police reports containing the defendant NYPD officers' own fabricated and falsified accounts that Plaintiff had committed crimes and/or offenses, and forwarding that fabricated evidence to prosecutors, the defendant NYPD officers caused Plaintiff to be arrested, detained, and in violation of Plaintiff's rights, pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to Plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.
59. To wit: defendants JOHN DOE and GEGA conspired to communicate false information to the District Attorney's office, which resulted in the amplification of the charges against Plaintiff.

60. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

61. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, NY
December 14, 2021

Yours, etc.

_____/s/_____
Christopher H. Fitzgerald
Attorney for Plaintiff
JOSEPH TORRES, JR.
233 Broadway, Suite 2348
New York, NY 10013
212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **JOSEPH TORRES, JR.** I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
December 14, 2021

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff